

25STCV11887 25STCV11887

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25STCV11887 Aaron

Brody v. Toyota Motor Sales, U.S.A., Inc. et al.

Thursday, August 13,

2026

[TENTATIVE] ORDER GRANTING

DEFENDANTS' MOTION FOR SUMMARY ADJUDICATION (6251)

I.

BACKGROUND

The

complaint alleges that Toyota Motor Sales, USA, Inc. ("Defendant") issued a warranty contract to Plaintiff with the purchase of a 2022 Lexus UX. Defects and nonconformities developed that impaired the use of the vehicle. Defendant did not promptly repurchase or replace after failing to conform the vehicle to the terms of the express warranty within a reasonable number of attempts. Plaintiff alleges violations of the Song-Beverly Consumer Warranty Act and a claim for negligent repair against Lexus Santa Monica.

Defendants

move to summarily adjudicate the sixth cause of action for fraudulent inducement-concealment because there are no facts demonstrating Defendant had a duty to disclose or that Defendant failed to disclose a material fact, and therefore, the punitive damages claim should be adjudicated in Defendants' favor.

Defendants

argue the fifth cause of action for negligent repair is barred by the economic loss rule.

Plaintiff

files a notice of non-opposition.

II.

LEGAL STANDARDS

Summary adjudication can

be granted “as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages. (Code Civ. Proc., § 437c (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id.)

The court applies the

three-step analysis to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents’ claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (Torres v. Reardon (1992) 3 Cal.App.4th 831, 836.)

III.

DISCUSSION

Fraudulent

concealment

The

elements of a fraud claim based on concealment are: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and

would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310–311.)

There

are “four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (Id. at 311.) If a fiduciary relationship does not exist, but the latter three circumstances are present, plaintiff must still show “the existence of some other relationship between the plaintiff and defendant from which a duty to disclose can arise.” (Id. at 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

Plaintiff

alleges Defendants actively concealed the engine defect. (Complaint, ¶ 57.) There is no dispute that Plaintiff did not experience an engine defect. (UF 7.) At his deposition, Plaintiff was asked to describe the recurring problems. He described bubble in the trims, right blinker malfunction, turn signal, USB port doesn't work, power locks failed, a rattling antenna, and a “sway bar”, seeping oil, clicking in the front end. (Ex. J, p. 47:22-49:3.)

The

complaint alleges the car had engine, transmission and electrical defects. (Complaint, ¶ ¶ 12.) There is no dispute that the car did not suffer an engine defect. (UF 6- 8.)

Plaintiff

admitted he did not have direct dealings with Defendant. (UF 9, 12). He did not rely on anything in deciding to buy the vehicle. He did not research the internet or rely on marketing materials. (UF 10-11.) Therefore, there is no evidence of a direct relationship with Defendant from which a duty to disclose could arise.

The

fraudulent concealment claim serves as predicate to support recovery of punitive damages. Without a fraud claim, there is no basis for recovery of punitive damages which requires clear and convincing evidence of Defendant's malice,

fraud, or oppression.(Civ. Code, § 3294
subd. (a).).

B.

Negligent
repair

The fifth cause of action for
negligent repair alleges Defendant Lexus Santa Monica (“Lexus”) owed a duty to
use ordinary care and skill in storing and repairing the vehicle, which Lexus
allegedly failed to do, causing Plaintiff damage. (Complaint, ¶ 48-50.)

The
economic loss rule bars tort recovery in a transaction where the plaintiff
suffers only economic losses. (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th
979, 988.) Such losses consist of “damages for inadequate value, costs of
repair and replacement of the defective product or consequent loss of
profits—without any claim of personal injury or damages to other property. (Robinson at 988.)

Plaintiff did not suffer any
physical injuries or property damage as a result of any alleged improper
repairs. (UF 13, 14).

IV. CONCLUSION

Based on the foregoing, Defendant's
motion for summary adjudication of the fifth and sixth causes of action and the
claim for punitive damages is GRANTED.